



File No.: EXP202210597

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant, previously claimant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated February 9, 2023, and based on the following

FACTS

FIRST: On February 9, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202210597, in which it was agreed to uphold for formal reasons the claim for the exercise of rights made by the appellant against CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on February 10, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which they state the following:

The appellant expresses their clear disagreement with the resolution that upheld for formal reasons the right of access requested.

The appellant begins with a chronological analysis of the events between the parties to emphasize that the right of access has not been fully addressed because the following remains pending:

“To which companies, legal entities, or individuals of any kind have the data of the undersigned been provided and on what dates – What exact day the account was canceled, and consequently, the detailed settlement of the same (exact date of the start and end of the computation period that is settled, with the amounts and detailed concepts).”

FOURTH: On March 7, 2023, this Agency forwarded the reconsideration appeal submitted by the appellant to the respondent. As of the resolution of this appeal, the respondent has submitted arguments stating that the appeal should be dismissed as it does not provide anything that would change the meaning of the resolution issued by this Agency.

“...The resolution subject to appeal is in accordance with the law, and the reasons for the appeal presented by the claimant are totally incoherent and nonexistent, as the claimant puts forth arguments in their writing that are, in reality, their particular and interested version of the facts...”

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LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, it should be noted that in the resolution of the claim it was indicated that only issues related to the right of access as contemplated in Article 15 of the GDPR and Article 13 of the LOPDGDD would be taken into account, so any other issues raised would be set aside and would have to be resolved in the appropriate forums.

Therefore, it will be analyzed whether what is presented in the appeal falls within the right of access and if, in the affirmative case, it has been addressed or not.

Regarding the first issue of which entities or individuals have been provided with the claimant's data, the respondent replied:

“... Copy of the contract: Attached as Annex No. 1

Date of establishment: 07/08/2006

Certificate of the current status of the same and information associated with the contract: Attached as Annex No. 2

Access to the information associated with the contract (including who has had access to the data of the said contract and for what purpose); CaixaBank Payments & Consumer has service provision contracts with collection agencies that act as data processors, processing the data on behalf of CaixaBank Payments & Consumer for the purpose of recovering debt.

The aforementioned letter, and all the documentation previously mentioned therein (which has also been provided by CaixaBank Payments & Consumer to this Agency, as evidenced in the present file), was delivered to the interested party on January 2, 2023, at 11:03; therefore, before submitting their response (in the hearing process), as can be inferred from the corresponding acknowledgment of submission in the General Registry of this Agency (Date and time of registration on January 4, 2023, 09:33:12 and Date of submission: January 3, 2023, 19:30:46). Consequently, what the claimant asserts in allegation THIRD of their response (“...as of the date of submission of this writing, nothing has been received...”) is completely untrue.

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3/4

It should be remembered that the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data in question, the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

And, we cannot forget that data processors are not recipients of the data, so the data controller/complained party is not obliged to identify them. The data processor acts on behalf of the controller; for this reason, Article 33.1 of the LOPDGDD states that access by a data processor to the personal data necessary for providing the service to the controller will not be considered a communication of data. Therefore, data processors cannot be considered "recipients" of the data, in the terms set out in Article 4.9 of the GDPR, which defines a "recipient" of the data as the natural or legal person, public authority, service, or other body to whom personal data are communicated.

And, regarding the second issue raised: “...What exact day was the account canceled, and, consequently, the detailed settlement of the same (exact date of the start and end of the computation period being settled, with the amounts and detailed concepts...”. It should be noted that the now appellant in their request of October 2022 requested: “Date of establishment of the contract

***CONTRACT.1 - Certificate of the current status of said contract - Who has had access to the data of this contract, for what purpose or motivation, and with what explicit authorization, as well as the name of the natural person responsible for the file and the name of the data protection officer who sends me the letters.” Therefore, this is information that was not requested in the exercise of the right of access, which is why the examined appeal for reconsideration must be dismissed. All this without prejudice to the appellant's right to submit a new access request to the respondent specifying the information they wish to obtain.

III

After examining the appeal for reconsideration submitted by the interested party, we have not found a

lack of accreditation of the relationship of entities to which the claimant's data could have been provided. There are no new facts or legal arguments that would warrant reconsidering the contested resolution. Therefore, the appeal for reconsideration is dismissed.

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4/4

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on February 9, 2023.

SECOND: TO NOTIFY this resolution to A.A.A. and to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

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